

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR SADDLE RIDGE, 13TH FILING, A REPLAT OF A PORTION OF TRACT A, SADDLE RIDGE 12TH FILING, A PORTION OF LOT 1, BLOCK 1, CHEYENNE HILLS CHURCH SUBDIVISION AND A PORTION OF THE EAST HALF OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND INCLUDING PERSHING BOULEVARD, EAST OF FARTHING ROAD; ALSO LOCATED SOUTH OF SAGE ROAD, EAST OF GUNSMOKE ROAD).”

WHEREAS, WJE, LLC and Laramie County School District No. 1, have subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, WJE, LLC and Laramie County School District No. 1, the owners of the above described land, have caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Planning and Development Department; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Saddle Ridge, 13th Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, if this land is annexed into the City and when the required Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2018.

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

MARIAN J. ORR, MAYOR

CITY COUNCIL STAFF REPORT - SUMMATION

Saddle Ridge, 13th Filing Final Plat

CASE NUMBER: UDC-18-00079 **CURRENT CODES:** CHCS 01 / SDRA 12 / UNP
PREPARED BY: Susana Montana **PROPOSED CODE:** SDRA 13

MEETING DATES:	April 2, 2018 – Planning Commission	Public Hearing
	May 14, 2018 – City Council	1 st Reading
	May 22, 2018 – Public Services Committee	1 st Reading
	May 29, 2018 – City Council	2 nd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Preliminary Plat Map; Preliminary Plat Checklist; Final Plat; Open Space Narrative; Transportation Network Plan; Transportation Worksheet; Conceptual Drainage Analysis - Submitted 2/23/2017 as the original project submission.
- Final Plat; - Submitted 3/23/18 to address several comments.
- Dixon curve update submitted 4/9/2018 to address Commission Condition #4
- Drainage analysis exhibit submitted 4/17/2018 to address Commission Condition #5
- Updated traffic analysis submitted 4/17/2018 to address Commission Condition #5
- Block 3 topographical constraints exhibit submitted 4/25/2018 to address Commission Condition #3
- Revised Final Plat submitted 5/2/2018 to address Commission Condition Numbers 1, 4 and part of Condition #2.

PLANNING COMMISSION RECOMMENDATION: On April 2, 2018, the Planning Commission voted 4 to 0 to conditionally-approve the preliminary plat in an expedited review process, advancing the final plat to the Governing Body with the following five (5) conditions:

1. Correct the survey data contained within the map per comments by the City Surveyor.
2. Provide a plat note that states the purpose and entity responsible for ongoing maintenance for donated lots per comments by the Community Recreation and Events Department and amend the MOU (contract No. 6458) to include the new greenway lots.
3. Provide a mid-block pedestrian path between Farthing Road and Sage Road OR seek and justify relief per UDC Section 4.3.3 by providing documentation that a path cannot reasonably be provided.
4. Correct the angle of the Dixon Drive right-of-way, per comments by the Engineering Department and Public Works Department.

5. Update submitted transportation and drainage studies, per comments by the City Drainage Engineer and Public Works Department.

On May 2, 2018, the Applicant submitted the current Final Plat, dated April 18, which positively addresses condition numbers 1 and 3 through 5 that were recommended by the Planning Commission. The Applicant is working with the City to amend the current Saddle Ridge MOU to include the new greenway lots. It is anticipated that by the date of the Council's Public Services Committee meeting to review and consider this Final Plat, that MOU Amendment will be ready to execute with signatures. Therefore, all five conditions recommended by the Planning Commission for the Final Plat to meet the review criteria set forth in Section 2.1.2.d and Section 2.1.3.d of the Cheyenne Unified Development Code with have been or will be met and no conditions of approval are required of this Final Plat.

Staff also recommends that the Governing Body approve the Final Plat with the larger block sizes by granting the topographical exception for Blocks 2 and 3, pursuant to UDC Section 4.3.3. c.1.

CITY COUNCIL STAFF REPORT

Saddle Ridge, 13th Filing Final Plat

CASE NUMBER: UDC-18-00079 **CURRENT CODES:** CHCS 01 / SDRA 12 / UNP

PREPARED BY: Susana Montana **PROPOSED CODE:** SDRA 13

OWNER/AGENT: WJE LLC
John Edwards
506 Shoshoni St.
Cheyenne, WY 82009

MEETING DATES: April 2, 2018 – Planning Commission Public Hearing
May 14, 2018 – City Council 1st Reading
May 22, 2018 – Public Services Committee 1st Reading
May 29, 2018 – City Council 2nd Reading

PROJECT: Saddle Ridge, 13th Filing Preliminary / Final Plat

EXPEDITED STATUS:

Pursuant to Section 2.1.2.c.3 of the City's Unified Development Code (UDC), as the plats contain no significant planning, design or engineering issues, this application was deemed eligible for expedited review with conditions and the Planning Commission conditionally-approved the Preliminary Plat on April 2, 2018.

WORK DESCRIPTION:

Preliminary Plat and Final Plat application to replat 47.02 acres of land for detached dwellings, portion of greenway system, and a school facility.

LOCATION:

1. Legal Description: A portion of Tract A, Saddle Ridge 12th Filing, a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Cheyenne, Laramie County, Wyoming.
2. Location: Located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.
3. Address: Unaddressed.

SIZE: 47.02 acres.

CURRENT ZONING: County A-1 Agricultural and Rural Residential.

PROPOSED ZONING: City MR Medium-density Residential and P Public.

EXISTING USE: Vacant.

PROPOSED USE: Residential, school facility.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential/Agricultural	A-1	County
South	Residential	AR	County
East	Vacant	A-1	County
West	Residential	MR	City

EXPEDITED REVIEW:

This plat was considered as an expedited application pursuant to Section 2.1.2.c.3 of the City's Unified Development Code (UDC). An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design or engineering issues. In other words, proposals that generally meet applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process. On April 2, 2018, the Planning Commission approved the Preliminary Plat under this expedited process, based on 5 conditions that enabled the application to meet the expedited plat qualifying conditions, and forwarded the Final Plat to the Governing Body with a conditional-recommendation of approval.

EXECUTIVE SUMMARY:

This Saddle Ridge 13th Filing Final Plat subdivision contemplates replatting 47.02 acres as a continuation of the Saddle Ridge neighborhood to the west of the subject property. The Applicants are proposing platting the following lots:

- 114 residential lots on 47.02-acres including 94 lots on 24-acres devoted to single family homes and 20 lots on 2.46-acres devoted to twin homes;
- One 9.55-acre lot for a LCSD #1 school facility;
- 3 lots, totaling 1.33-acres, donated to the City to extend the Greenway system through this phase of the Saddle Ridge development;
- Several rights-of-way on land totaling 9.46-acres are proposed through the subject property; and
- A 0.21-acre Tract A in the northeast corner of the plat set-aside as a possible connector access point to future development to the east.

This application is generally consistent with PlanCheyenne. This application is being pursued in conjunction with an annexation petition and zoning map amendment for a portion of the subject property.

In order to meet the review criteria set forth in Section 2.1.2.d and Section 2.1.3.d of the Cheyenne Unified Development Code, the Planning Commission on April 2, 2018, by a vote of 4 to 0, recommended conditional-approval of the Final Plat to the Governing Body with the following five (5) conditions:

1. Correct the survey data contained within the map per comments by the City Surveyor.
2. Provide a plat note that states the purpose and entity responsible for ongoing maintenance for donated lots per comments by the Community Recreation and Events Department and amend the MOU (Contract No. 6458) to include the new greenway lots.
3. Provide a mid-block pedestrian path between Farthing Road and Sage Road OR seek and justify relief per UDC Section 4.3.3 by providing documentation that a path cannot reasonably be provided.
4. Correct the angle of the Dixon Drive right-of-way, per comments by the Engineering Department and Public Works Department.
5. Update submitted transportation and drainage studies, per comments by the City Drainage Engineer and Public Works Department.

On May 2, 2018, the Applicant submitted the current Final Plat, dated April 18, which positively addresses condition numbers 1 and 3 through 5 that were recommended by the Planning Commission. The Applicant is working with the City to amend the current Saddle Ridge MOU to include the new greenway lots. It is anticipated that by the date of the Council's Public Services Committee meeting to review and consider this Final Plat, that MOU Amendment will be ready to execute with signatures. Therefore, all five conditions recommended by the Planning Commission for the Final Plat to meet the review criteria set forth in Section 2.1.2.d and Section 2.1.3.d of the Cheyenne Unified Development Code will have been or will be met and no conditions of approval are required of this Final Plat.

Staff also recommends that the Governing Body approve the Final Plat with the larger block sizes by granting the topographical exception for Blocks 2 and 3, pursuant to UDC Section 4.3.3. c.1.

LOCATION/VICINITY MAP:



*Figure 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program*

AERIAL OF SUBJECT PROPERTY:



*Figure 2 - Site aerial highlighting the subject property located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road.
Source: Cheyenne/Laramie County GIS Cooperative Program*

VIEW OF SUBJECT PROPERTY:



*Figure 3 –Image of the subject property from E. Pershing Boulevard, facing due north.
Source: Planning and Development Department Image*

FINAL PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed final plat, the Staff, Planning Commission and City Council shall use the following three criteria [UDC 2.1.3.d]:

LAYOUT AND DESIGN – *The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.*

The layout and design of this plat are in substantial compliance with the Saddle Ridge 13th Filing preliminary plat approved by the Planning Commission on April 2, 2018.

CONDITIONS OR MODIFICATIONS – *The application meets conditions or modifications of the approved preliminary plat.*

A preliminary plat for a portion of this property was conditionally-approved as the 8th and 9th Filings with the following two conditions:

- 1) Review and address the comments relating to the "donated" land to the various departments with the final plat submittal; and
- 2) Remove the vacation statement from the plat as it relates to the vacation of Ordinance 39222

These conditions have been met and the Saddle Ridge Memorandum of Understanding (MOU), Contract No. 6458, satisfies Condition No. 1 of the Preliminary Plat. In the three years since the 8th Filing, the developer has submitted a 10th, 11th and 12th Filing for this property. Now, the developer has acquired additional land to the north of the property: A portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision. This has led to some changes in the lot and block configurations for the previously-approved 8th Filing preliminary plat and, hence, the requirement for a new preliminary plat for this subdivision of land.

The proposed Blocks 2 and 3 include land from that additional land to the north. The developer has elected to design the subdivision with blocks that exceed the maximum Block Size and Connectivity Requirements of UDC Section 4.3.3. UDC Section 4.3.3.c.7 provides some exceptions to the maximum block face size and in Condition Number 3 the Commission recommended that the Applicant addresses these exceedances by either providing a mid-block pedestrian pathway for those blocks or by demonstrating that topographical constraints qualify the plat for an exception to allow the exceedances per UDC 4.3.3. c.1. The developer states that the land is challenged by varied topography which affects the ability of this proposed replat of the 12th Filing to comply with block size requirements of UDC Section 4.3.3, Table 4-6 which allows a maximum block face of 800 linear feet and a maximum 2,200 linear feet perimeter for any block. On this proposed replat, Block 3's perimeter and two of its faces (block length) and Block 2's face exceeds maximums specified by UDC Table 4-6. Since the

April 2nd Commission meeting, the Applicant submitted a topo exhibit demonstrating to the City Engineer and Planning & Development Director that Blocks 2 and 3 do contain topographical constraints sufficient to warrant the granting of the proposed block face sizes of 1,464-linear feet for Block 2 and 1, 270-linear feet for the west side of Block 3 and 1,488-linear feet for the east side of Block 3. **By this staff report, the Applicant and staff request the City Council to grant the proposed greater block face and perimeter sizes natural feature exception, pursuant to UDC 4.3.3. c.1.**

The developer is also seeking to extend the Greenway system that runs through the rest of the Saddle Ridge neighborhood and plans to donate Lots 1 & 2, Block 1 and Lot 21, Block 7 to the City for Greenway purposes. The Commission required the Applicants to clearly identify and note on the plat the proposed function of these parcels, as well as maintenance responsibilities for the lots; the revised Final Plat accomplishes this. In the Sheet 1 block entitled "Donated Lots". In addition, those three lots will need to be added to the existing Saddle Ridge Memorandum of Understanding (MOU) Contract No. 6458, between the Applicant and the City as a Second Amendment. The Saddle Ridge MOU contracts 6458 and 6410 identify the responsibilities for the construction and management of donated lands for multi-purpose non-motorized pedestrian and bicycle pathway and park and landscape amenities in the Saddle Ridge 8th, 10th, 11th, 12th and now 13th Filings of the Saddle Ridge development. The Commission's Condition Number 2 would remedy this deficiency. The Applicant has drafted a Second Amendment to the MOU and this draft is being reviewed by City staff. Staff will ensure that this MOU amendment is executed prior to signing of the Final Plat by the City.

An additional concern noted by the Planning Commission was the orientation of the terminus "stub" of Dixon Drive in the southeastern portion of the proposed replat. Intersections are required to occur at between 80° and 100° angles. Wilderness Trail and Dixon Drive are proposed to form an intersection which shows Dixon Drive making an approximately 63° angle. The Planning Commission's Condition Number 4 would require the Applicant to correct this. Since the April 2nd Commission meeting, the Applicant has amended the plat to correct this deficiency and the City Engineer has approved the revised configuration of this intersection which is reflected in the current proposed Final Plat. Therefore, Planning Commission-recommended Condition No. 4 has been met.

The Commission requested, in Condition No. 5, that the developer update the transportation and drainage studies for this replat. Since the April 2nd Commission meeting, an updated traffic study was submitted on April 17th and a drainage evaluation was submitted on April 26th and both have been accepted by the City Engineer. Therefore, Commission-Condition No. 5 has been met.

The survey data corrections required by the City Surveyor have been made on the current Final Plat submittal and, therefore, Commission-Condition No. 1 has been met.

PURPOSES, INTENT, AND APPLICABLE STANDARDS – *The application meets purposes, intent, and applicable standards of Article 4.*

This Final Plat, with the recommended five conditions of approval, would meet the purposes, intent, and applicable standards of Article 4.

REVIEW of 2nd Submittal Final Plat

City Surveyor: Engineering Department, Jack Studley 04/30/2018

1. Boundary data appear in order and close mathematically.
2. In the DEDICATION legal description, third paragraph, the Westerly boundary is shown as 235.41 feet. On the map and on the original plat for Cheyenne Hills Church Subdivision, this dimension is shown as 235.31'. This discrepancy is required to be double checked and corrected.
3. In the DEDICATION legal description, ninth paragraph, third line, a distance is provided of 598.61 feet to the South R/W of Pershing. This is not shown thus on the map, the distance provided is only 498.74' to the Northerly R/W of Pershing. This discrepancy is required to be rectified.
4. In the DEDICATION legal description, ninth paragraph, fourth line, the azimuth provided is 355d 55'27", and on the map it is 335d 55'27". This discrepancy is required to be rectified.
5. In the DEDICATION legal description, ninth paragraph, fourth line, the same line distance is provided as 534.91 feet, and then provided as 435.00' on the map, the North or South R/W question. This discrepancy is required to be rectified.
6. In the DEDICATION legal description, ninth paragraph, thirteenth line, the closing chord distance is provided as 117.45 feet, but the curve table shows 28.28'. This discrepancy is required to be rectified. [This Commission Condition #1 has been met.]

Engineering - Drainage: Engineering Department, Michael Vinson 04/23/2018

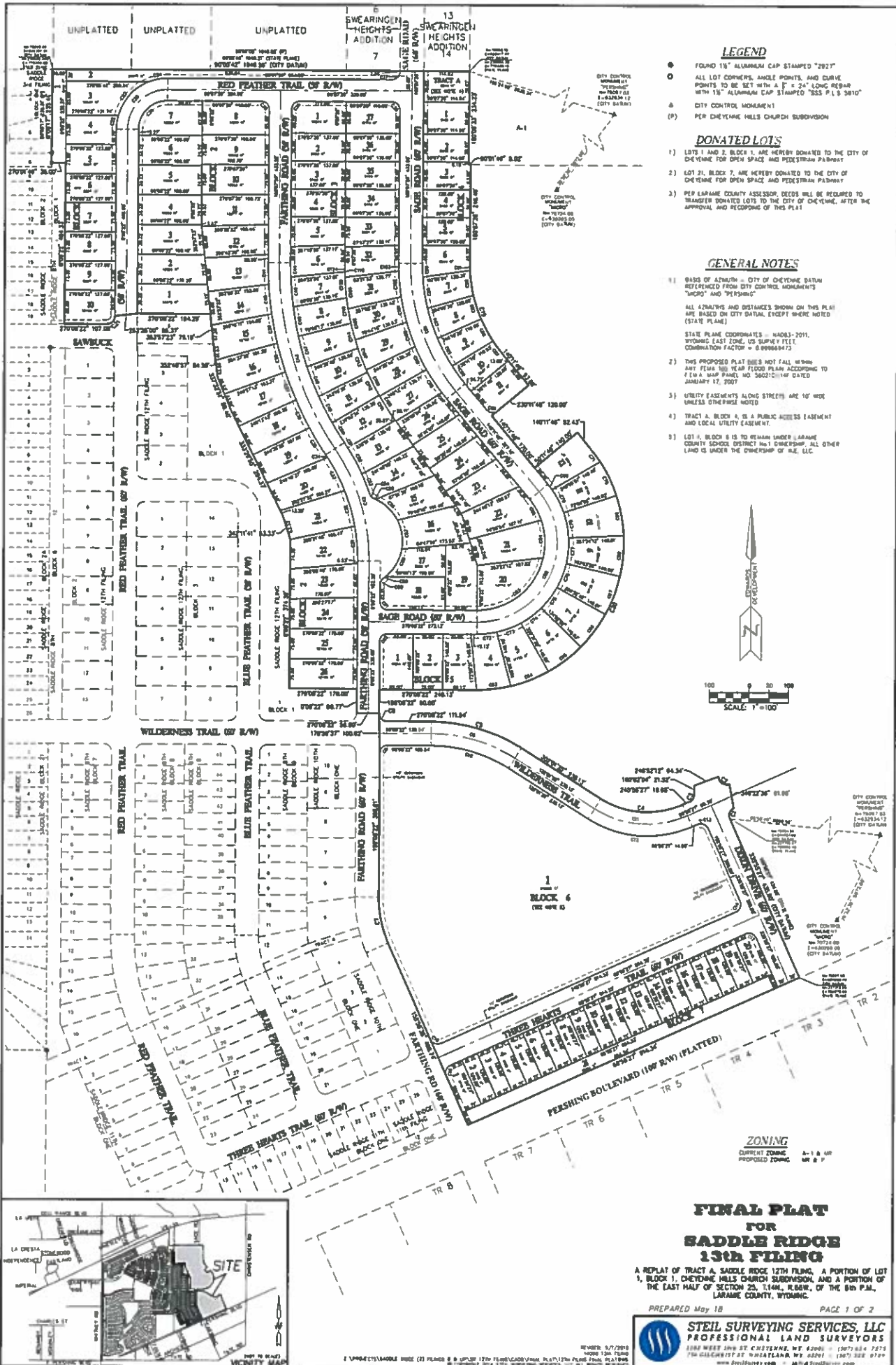
With the construction of Saddle Ridge 12th the stormwater detention pond adjacent to Pershing Boulevard is fully utilized as a detention pond and a construction sediment pond. No additional construction can continue until a revised plan is submitted and approved. This is documented in a letter to the City Engineer's Office from Benchmark Engineers, PC, dated July 16, 2017. A revised plan must address finalizing the construction of the detention pond for flood peak attenuation, as well as construction BMPs upstream of the pond to prevent sediment from reaching the pond. [This Commission Condition #5 has been met.]

Parks & Recreation: Parks and Recreation Admin, Teresa Moore 04/26/2018

In the "Donated Lots" notes 1 & 2, please identify the purpose for which the lots are to be used. It is this Department's assumption that it is for Greenway only. [This Commission Condition #2 has been met.]

Attachment A: Final Plat
Attachment B: Applicant's handout

C: Owner, Agent/Applicant, File

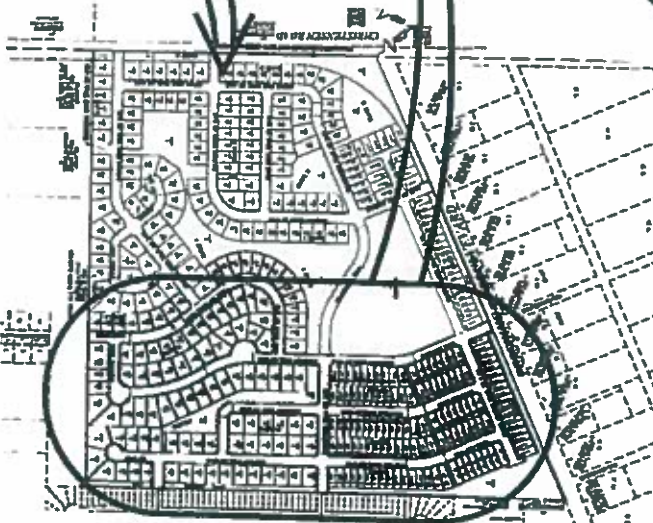


2015 MASTER PLAN



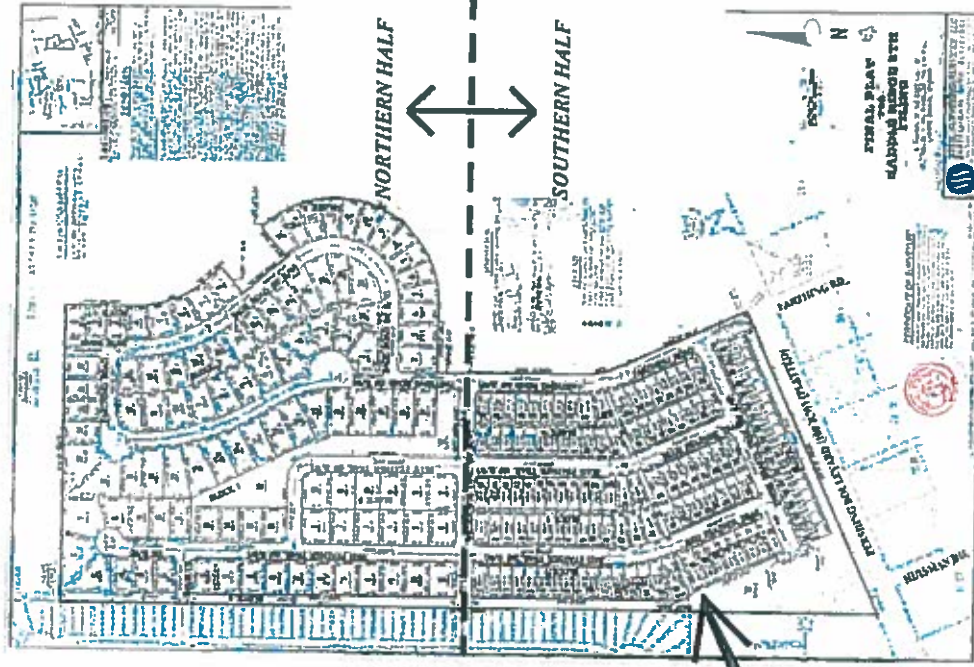
A

SUMMER 2015 APPROVED PRELIMINARY PLAT



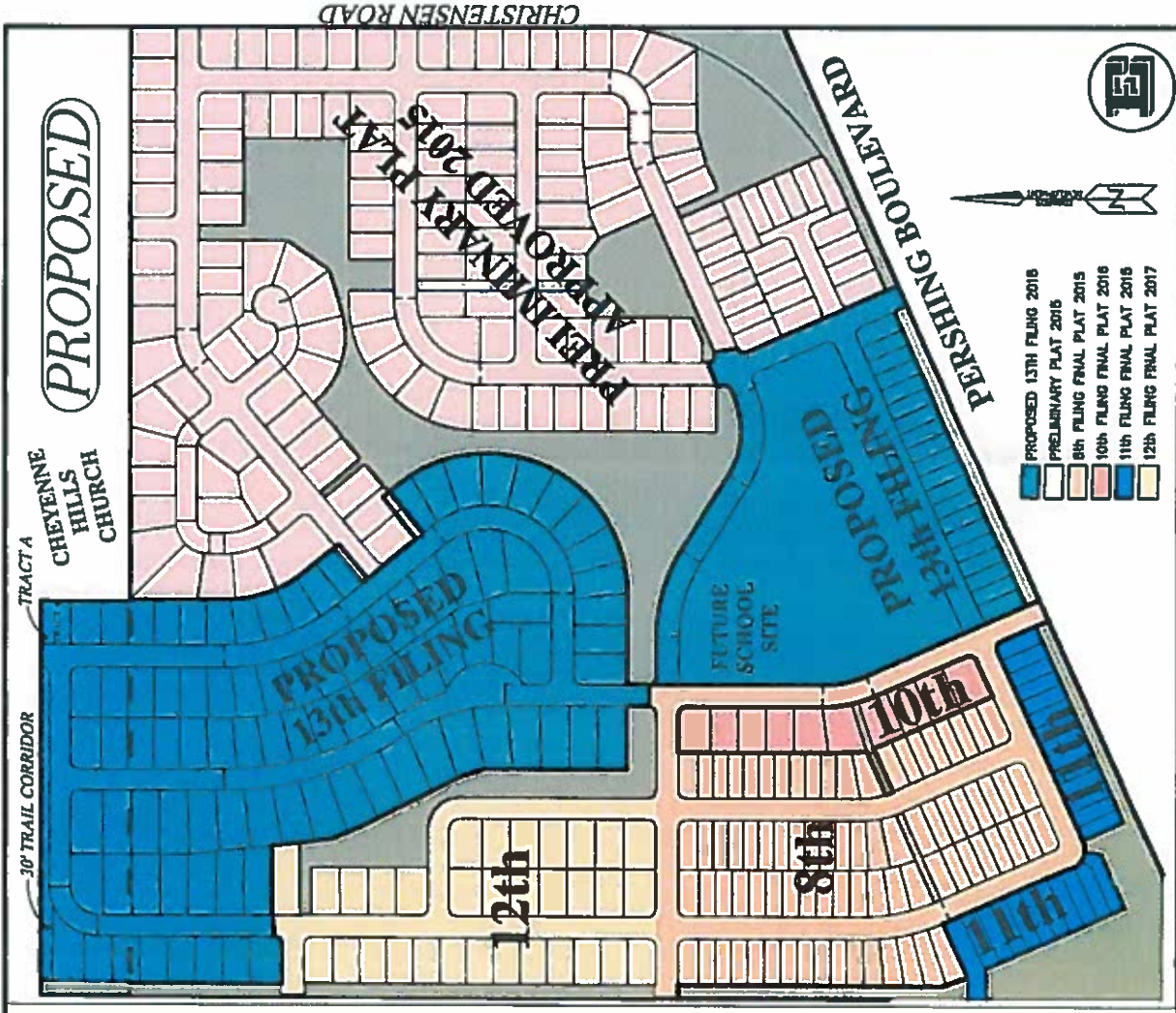
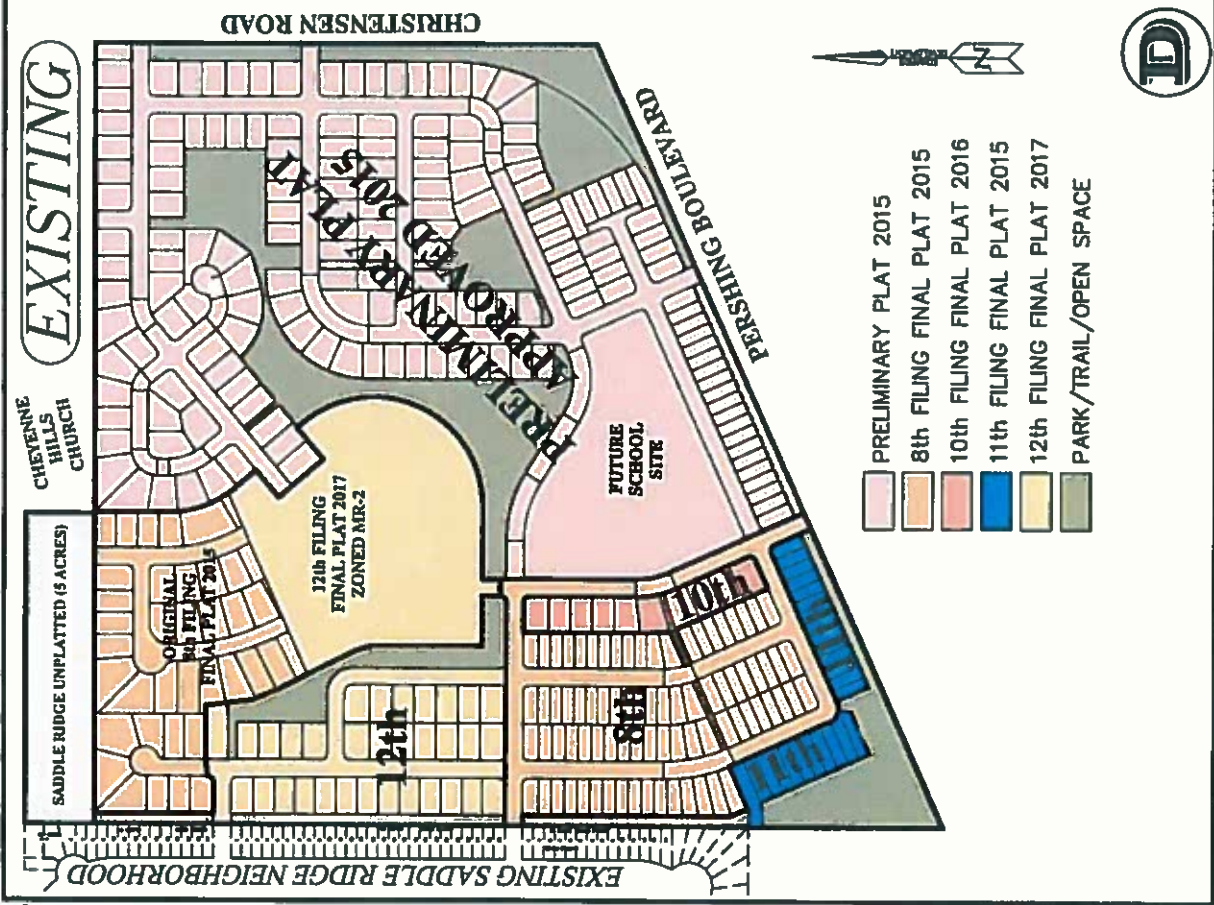
B

FALL 2015 APPROVED 8TH FILING PLAT



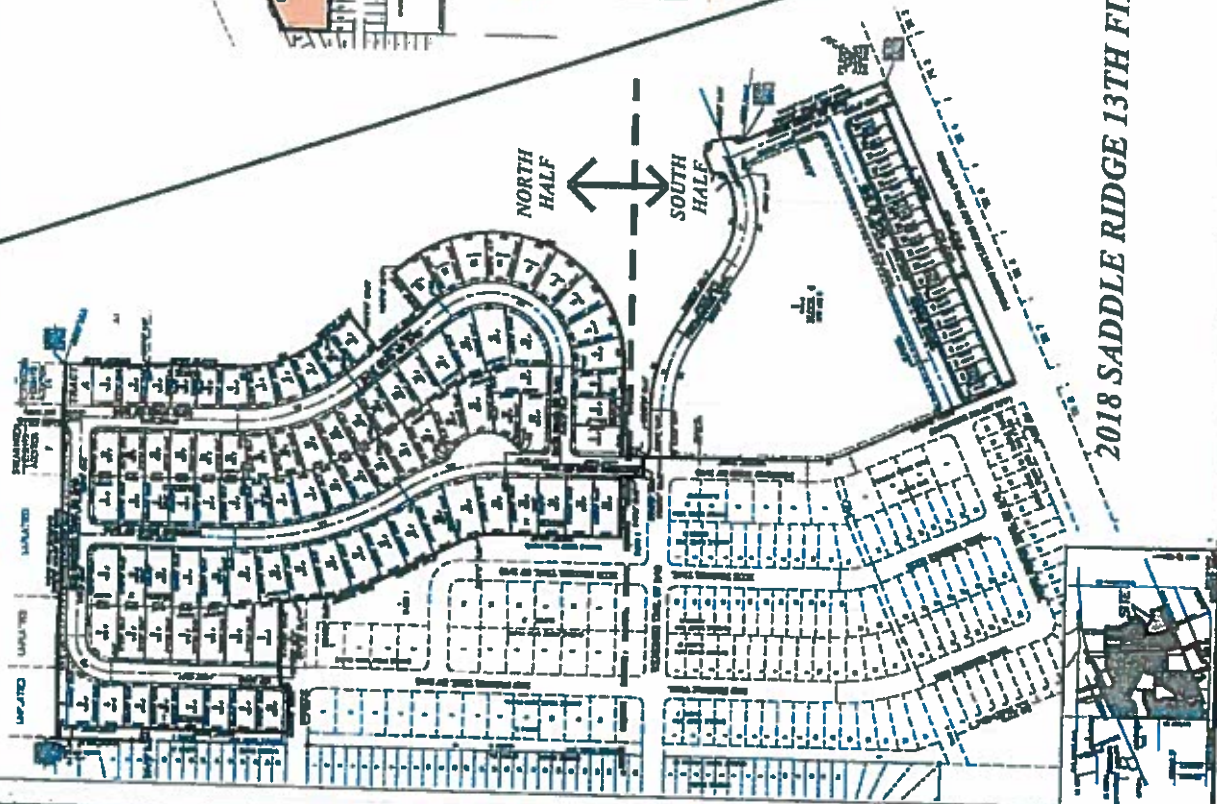
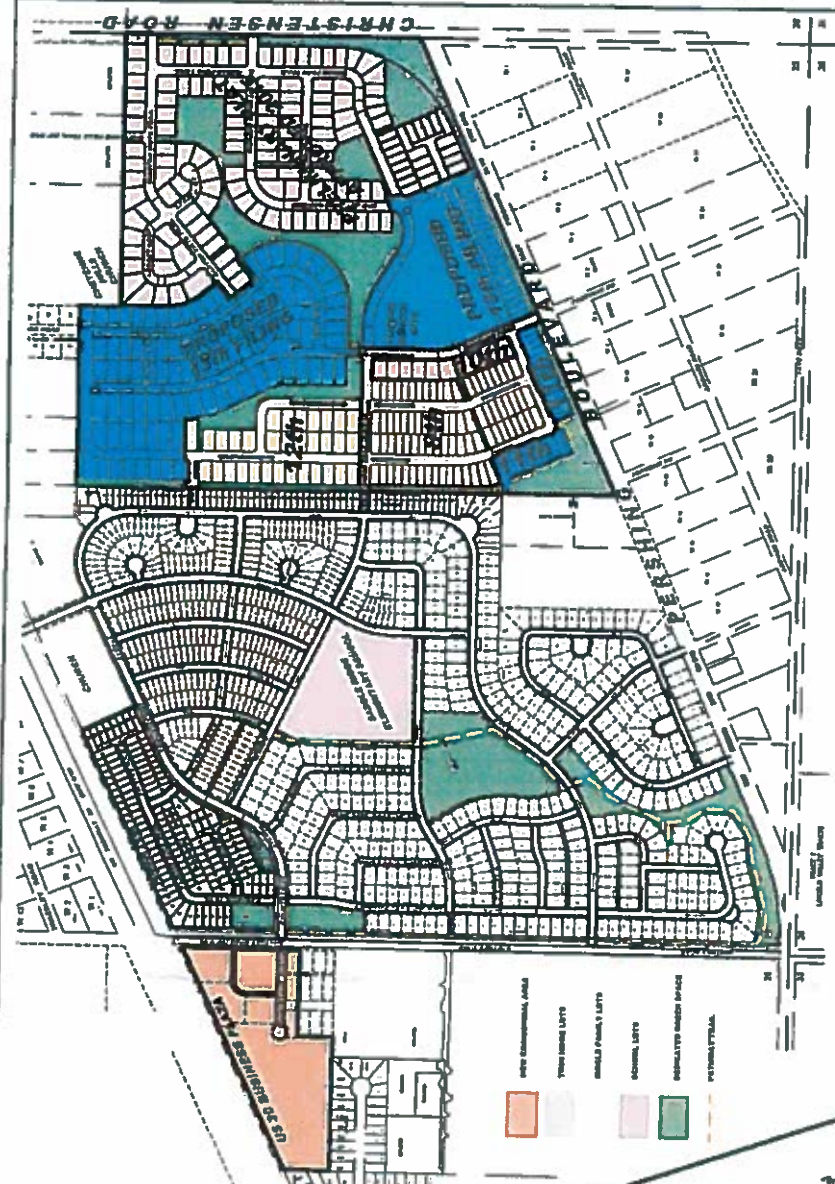
C

Version 1.0.0.0 Sheet 1 of 1





2018 UPDATED MASTERPLAN



2018 SADDLE RIDGE 13TH FILING

